MAZOWE MINING COMPANY (PVT) LTD

Versus

GILBERT GWAVAVA

And

WILFORD PHIRI

And

WILLARD MUKUTIRI

And

THE MASTER OF THE HIGH COURT

And

THE REGISTRAR OF COMPANIES N.O.

And

SAKURA VUTA DEWATERING (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
COMMERCIAL DIVISION
CHILIMBE J
HARARE 27 and 29 July 2026

Opposed Application

T. Mpofu for the applicant
T. Magwaliba for the 1st,2nd and 3rd respondents
Ms L. Rufu for the 6th respondent
No appearance for the 4th and 5th respondents

CHILIMBE J

BACKGROUND

[1] Before me is a chamber application [case number HCHC 566/25], for condonation of a breach committed in a chamber application [case number HCHC 347/24], for the dismissal of a court application [case number HCHC 84/24], seeking the placement of applicant under corporate rescue in terms of s 124 (1) of the Insolvency Act [Chapter 6:07] ("the Insolvency Act").

THE DISPUTE BETWEEN THE PARTIES

[2] The contesting parties herein are the applicant on one side, and the first, second and third respondents on the other. The fourth and fifth respondents are not before the court. The sixth respondent, elected to stay out of the broil. They however maintained a watching brief through Ms *Rufu*.

[3] The 3 matters currently pending before the court bear the following history; -

i. HCHC 84/24 was filed on 15 February 2024 by the herein first to third respondents claiming the status of affected persons as defined in s 121 (1) (a) (iii) of the Insolvency Act. The founding affidavit was deposed to by first respondent.

ii. HCHC 347/24 was filed on 17 May 2024 by the applicant and the founding affidavit was deposed to by its Company Secretary Mr Hapson Makotore.

iii. HCHC566/25 (current matter) was filed on 25 September 2025 by the applicant. The founding affidavit was sworn to by Ms Panashe Petronella Mujegu, applicant's legal practitioner.

THE NEED FOR SPEEDY RESOLUTION OF DISPUTES

[4] At commencement, I tendered to Messrs *Mpofu* and *Magwaliba* (for the applicant and the three respondents respectively) the suggestion that the disputes under HCHC 566/25 and HCHC 566/25 be resolved by consent to pave way for the set down and argument of the primary dispute HCHC 84/24 on the merits.

[5] Mr *Magwaliba* was amenable, but his colleague felt constrained. He tendered what I considered a fair and reasonable basis for persisting with the present application. My proposal to broker the truce had been motivated by a number of reasons including some which each counsel subsequently adverted to during the course of oral arguments. These being; -

i. *The need to resolve disputes expeditiously per rule 3 and the Second schedule of the commercial court rules*[1]

[1] High Court of Zimbabwe (Commercial Division) Rules SI 123/20.

[6] The multi-layered disputes generated by the initial application for corporate rescue run against the quest of the administration of justice in general, and this Division of the High Court in particular. Recent jurisprudence from the Supreme Court and this Division has reiterated this objective.

[7] see *Inebriant Cache &Anor v French Smith t/a Customs Services* SC 89-24, *Rosenfeldt v The Brackenhills Trust & Ors* HH-348-23, *Blakey Investments (Pty) Ltd v Delta Beverages (Pvt) Ltd & 2 Ors* HH 388-23, *Kuzota Three Family Trust NO v Diamond Precision (Pvt) Ltd* HH-454-24, *Hashiti & Anor v Seedco Ltd* HH 615-24, *Ever Prosperous Worldwide Ltd v Bekithemba Moyo* HH 31-25, and recently in *Vevhu Resources (Pvt) Ltd & 3 Ors v Nyachowe* SC 35-26 where MWAYERA JA held at paragraphs 17-18 that; -

> "17. In my view, the applicants' characterisation of the ruling as a final and dispositive admission of the document is incorrect. The ruling was purely procedural. It was a case management decision designed to regulate the flow of evidence in an ongoing trial, and in making it, the court *a quo* was correctly guided by the imperative to achieve substantial justice between the parties. Rule 4(3) of the Commercial Court Rules, 2020 is instructive and it provides as follows:
>
> "(3) The court shall in administering these rules, have due regard to the set of values set out in the Second Schedule to these rules and the need to achieve substantial justice inter parties in any particular case without derogating from the principles of natural justice or established law and resolving the dispute timeously."
>
> The above rule mandates the court to have due regard to the need to achieve substantial justice without derogating from established law, while ensuring the timeous resolution of the dispute….." [underlined for emphasis]

ii. Fresh approaches to corporate rescue under the new Insolvency Act

[8] The papers filed in HCHC 84/24, do confirm, despite the many contestations on detail, an undeniable state of commercial distress. The very situation which MALABA CJ, in his extended disquisition in *Metallon Gold (Pvt) Ltd & 3 Ors v Shatirwa Investments (Pvt) Ltd & 3 Ors* SC 107-21 urged the jurisdiction to resolve through the facility of corporate rescue.

[9] The 3 disputes noted herein do not render the resolution of matters at applicant company any easier nor quicker. It becomes the duty of the court to aid the process by issuing appropriate guidance.

iii. *The preponderance toward raising points in limine*

[10] It is beyond argument that points *in limine* are an intrinsic component in the adjectival mechanisms of our law. They can facilitate the disposal of disputes without the need for full judiciary inquiries. But so often, these ready tools of justice are misused. The courts have consistently warned against such conduct.

[11] The remarks of this court per MATHONSI J (as he then was) in *Telecel Zimbabwe (Pvt) Ltd v POTRAZ & Ors* HH 446-15 and again as judge of appeal in *Delta Beverages Limited & 2 Ors v Blakey Investments Pvt Ltd* SC 107-24 are apposite. In the latter decision, the learned judge of appeal observed at paragraph 20 that; -

> "20. The practice of law in this country is becoming a practice in preliminary objections at the expense of the resolution of real disputes between the litigants. Courts of law are becoming out posts of technicalities which have no end where counsel seek to outdo each other on the number of and the frequency with which they burden the Courts with objections. In fact, a lot of Court time is now being spent adjudicating over English grammar and syntax which is wholly undesirable, is an abuse of the Courts and impede access to justice. It is a practise which must be discouraged at all costs. In my view, the endless objections being taken by the respondent are niggling and an exercise in nit-picking trivialities which should not be directed at a single judge assigned to exercise judicial discretion on whether to grant the indulgence of condonation or not."

[12] Indeed, parties should rely on the primacy of pleadings and heads of argument during litigation. Points *in limine* should perhaps be but the froth in the gourd. Herein, each of the 3 matters between the parties has been characterised by a swathe of preliminary objections. I raise these remarks as a general caution given the preliminaries whose effect has been to hinder the resolution of the parties` disputes.

THE SEQUENCE OF AFFIDAVITS AND HEADS OF ARGUMENT IN MOTION PROCEEDINGS

[13] A related aspect being the procedure and sequence of filing of affidavits and heads of argument in opposed motion matters, a well settled matter in our law. In the Commercial

Court, Part III sets out the procedure affirming the guidance in authorities such as *Magurenje v Maphosa* 2005 (2) ZLR 44 (H), *Nhende v Zigora SC* 68-25, and *Unitime Investments (Pvt) Ltd v Assetfin (Pvt) Ltd* 137-23.

[14] Firstly, the respondents filed their heads of argument on 25 October 2025 ahead of the applicant which filed its set on 30 October 2025. On the date of hearing (15 January 2026) the respondents sprung a number of preliminary points from the bar. By consent, I directed that these be reduced to writing and served on the other side. The respondents filed, on 22 January 2026 a notice setting out the preliminary objections which they intended to raise as points of law on the date of argument and further heads on 16 February 2026. The applicant responded on 19 February 2026.

[15] The sequence in filing papers in motion is for good order, fairness and convenience. Litigants and legal practitioners are urged to adhere to same. In the same vein, whilst points of law can be raised at any point in the course of proceedings, they serve an even greater purpose when timeously raised (where possible as in this case), in the opposing or answering papers.

[16] Herein, the parties` approach necessitated the filing of several layers of competing submissions. Necessary, as I have stated, but without the telling value-add critical to the speedy dispensation of the dispute. With those remarks I will paraphrase the points in limine before addressing them in sequence. The respondents contended that; -

i. It was incompetent for the applicant to found a causa for condonation on r 4(2) of the Commercial Court Rules and r 7 of the High Court Rules,
ii. The application under HCHC 347/25 in respect of which condonation was sought was fatally defective. As a nullity it was thus quite unpardonable,
iii. The applicant failed to fulfil the requirements of condonation and in particular, to identify the infraction committed,
iv. Stripped of its disguise, the application sought to cure the defects in the founding affidavit filed in HCHC 347/25, an impossibility at law.

I now turn to deal with the above points in the succeeding paragraphs.

THE POINTS *IN LIMINE*

i. *It was incompetent for the applicant to found a causa for condonation on r 4(2) of the Commercial Court Rules and r 7 of the High Court Rules.*

[17] Mr *Magwaliba* argued that a party could not premise a cause of action on r 7 of the High Court Rules. Citing the Constitutional Court authority of *Minister of Mines & Mining Development & Anor v Fidelity Printers & Refiners (Pvt) Ltd & Anor* CCZ 9-22, he submitted that r 7 was a tool in the hands of the court and not an aid for a party without a cause of action.

[18] Mr *Mpofu* submitted that the cause of action was a prayer to seek the court`s condonation not rule 7 of the High Court Rules. He contended that there being no equivalent of r 7 in the Commercial Court Rules, the applicant relied on the bridging provision being r 4(2) of the rules of that court.

[19] Counsel drew the court`s attention to the established authorities which sounded the reminder that rules were made for the convenience of the court and justice between the parties (*Smith & Anor v Acting Sheriff of Zimbabwe & Anor* 1995 (1) ZLR 158 (SC) and *Profert Zimbabwe (Pvt) Ltd v Macdom Investments (Pvt) Ltd* HB-83-16).

[20] I am inclined to disallow the point in limine for the following reasons. It is trite law that a party in breach of the rules must, at earliest opportunity purge its default and seek the court`s pardon. In *Zimslate Quartzite (Pvt) Ltd & Ors* v *Central African Building Society* SC 34-17 the Supreme Court held at page 7 that:

> "An applicant, who has infringed the rules of the court before which he appears, must apply for condonation and in that application explain the reasons for the infraction. He must take the court into his confidence and give an honest account of his default in order to enable the court to arrive at a decision as to whether to grant the indulgence sought. An applicant who takes the attitude that indulgences, including that of condonation, are there for the asking does himself a disservice as he takes the risk of having his application dismissed."

[21] This is exactly what the present applicant has attempted to do. In *Mupungu v Minister of Justice and Parliamentary affairs* CCZ 7-21 and *Minister of Mines & Fidelity*, the Constitutional Court was confronted by an entirely different set of circumstances.

[22] Especially in the latter where the court dealt with a rather intransigent applicant who persisted with his quest in terms of r 5 of the Constitutional Court Rules (equivalent to r 7 in the High Court Rules) instead of r 35 which dealt specifically with condonation. A careful reading of GOWORA JCC`s remarks confirms, in my view, this conclusion were the learned JCC held at pages 11-12 that; -

> "In their founding affidavit, the applicants, in no uncertain terms, express that the first component of the application in respect of condonation is made pursuant to r 5 of this Court's rules. The application is premised on r 5. In so doing, the applicants are requesting the Court to accept that the application may be granted primarily on the applicants' failure to comply with the rules and that such failure must be pardoned as of right. A party cannot base any application before this Court on r 5 as it does not provide for a party to institute proceedings. It is a rule available to the Court where litigants have failed to comply with the rules of court but the Court considers it is in the interests of justice to condone the departure. The applicants cannot predicate an application for condonation. Rule 5 is a tool in the hands of the Court. Thus, it is meant for instances where a party has instituted proceedings but fails to comply with any provision of the rules. In that instance, the Court may then direct, authorise or condone the departure from the rules in the interests of justice."

ii. *Points (ii), (iii) and (iv)*

[23] These points, which may be addressed in one swipe, were immersed in the merits. They related to the bona fides of the application and its prospects. With this conclusion, I will proceed to address the issues on the merits based on the well-established requirements.

[24] See *Kombayi* v *Berkhout* 1988 (1) ZLR 53 (S) 57G-58A *Zimslate Quartzite (Pvt) Ltd & Ors* v *Central African Building Society* SC 34-17, and *Paul Gary Friendship* v *Cargo Carriers Limited & Anor* SC 01-13 cited in *Read v Gardiner & Anor* SC 70-19, where PATEL JA (as he then was), issued the following handy checklist at page 5; -

i. The extent of the delay involved or non-compliance in question.

ii. The reasonableness of the explanation for the delay or non-compliance.

iii. The prospects of success should the application be granted.

iv. The possible prejudice to the other party.

v. The need for finality in litigation.

vi. The importance of the case.

vii. The convenience of the court.

viii. The avoidance of unnecessary delays in the administration of justice.

i. *The nature and extent of the non-compliance in question.*

[25] The gravamen of the application is found in paragraph 5 of Ms Mujegu`s founding affidavit under the following line - "*The said application was however, brought under an incorrect citation of the High Court Rules 2021*."

[26] The applicant in my view, conflated 2 issues which I may refer to as the "head" and "belly" of the application. The chamber application in HCHC 347/25 bears the words; - "*Form CC 11A, Chamber application on Notice, Rule 38, in the High Court of Zimbabwe Commercial Division"*.

[27] It is therefore incontestable that the application itself or "head" was properly filed. Despite the ambivalence emanating from Ms Mujegu`s affidavit, the application had no issue. The problem lay in its "belly", namely the founding affidavit. The respondents were persistent that the incorrect reference to (a) rules of the High Court on dismissal of matters and (b) the repealed 1971 rules in paragraphs 2, 8 and 10 of Mr Makotore`s founding affidavit in HCHC 347/25 destroyed the foundation of the applicant.

[28] Mr *Magwaliba* argued further that this error was both inexcusable and incurable. Essentially what applicant sought to achieve was an amendment of the founding affidavit. The error stripped the application of any prospect of success in HCHC 347/25. Mr *Mpofu*`s response to this point was rather esoteric if I may say.

[29] All the court was required to do, argued Mr Mpofu, was to recognise the merits of the application for condonation and grant a reprieve to the applicant. The issues of (a) the impugned affidavit would be left to the court dealing with the application for dismissal and (b) its rectification to the procedural options available to the applicant in terms of the rules. The respondents` position amounted, per Mr *Mpofu* citing *Cordier v Cordier* 1984 (4) SA 524 (C) at 528I-529B, to "*arguing in a circle*"

[30] Counsel thus differed from his Mr *Magwaliba*`s reliance on this court`s decision of *Minerals Identity (Pvt) Limited v The Commissioner General of Police N.O and Others* HH626-20 which essentially held that an affidavit, once rendered could not be retrieved. Mr *Mpofu* argued instead that there was abundant authority that a party could amend its pleadings including properly recalling an affidavit and cited in support[2].

[31] It is not necessary that I render a ruling on the divergence as the question is not germane to the determination of this application. What I may mention though is that the relief sought by applicant is, rather equivocal given the nature of the application. It seeks the court to pardon the defective aspects of evidence placed before the court.

[32] The long and short of this matter is that the preamble, r 2 and 3 of the Commercial Court Rules all clearly prescribe that procedure in the Commercial Court will be governed by the said rules. The exception is those rules of the Commercial Court will directly cross reference to the High Court Rules and of course, r 4 (2) in the event on non-provision.

[33] The infraction therefore rests on reference, by Mr Makotore to the rules of the High Court and the repealed 1971 rules. This consideration, contrary to Mr Mpofu`s forceful argument about "arguing in a circle", is inescapable in the resolution of this matter.

[34] On that basis I note that Ms Mujegu indeed admitted her error and expressed compunction for it. She related, as explanation, the immediate measures she adopted in a bid to remedy the situation. Whilst counsel`s candour is commendable, her failing is inexcusable. The standard and professionalism expected of a legal practitioner within and without court must be consistently high.

[35] Not less (possibly even higher?) so in the Commercial Court in respect of which emerging jurisprudence from the Superior Courts has set issued commentary. See *Dardagan v Dardagan* SC 26-26, *Daily Dose Investments (Pvt) Ltd V Pritchards Trading (Pvt) Ltd* HH 341-25, *Mudhawin Enterprises (Pvt) Ltd v Energy Park (Pvt) Ltd* HH 343-25, and *Grain Millers Association Of Zimbabwe V Access Finance (Pvt) Ltd* HH 618-25. As such, the sins of the legal practitioner will unfortunately, be visited on applicant.

ii. *The prospects of success should the application be granted.*

[2] *Minerals Identity (Pvt) Ltd v The Commissioner General of Police N.O & Ors* HH-626-20, *Jackson v Rothmans of Pall Mall (Zimbabwe) (Pvt) Ltd* 1993 (2) ZLR 156 (SC), *Angelique Enterprises (Pvt) Ltd v Albco (Pvt) Ltd* 1990 (1) ZLR 6 (HC); *Lamin v Duly & Co Ltd* 1983 (2) ZLR 35 (H) and *Horne v Hine* 1947 SR 123

[36] Mr *Mpofu* argued that once the court pardons the applicant, it can then proceed to address the errors in the founding affidavit. I found his argument persuasive. Especially given the fact that the errors themselves could be fixed by way of deleting reference to r 59 of the High Court Rules (together with the dead 1971 provision), and replacing them with the correct rule 38 of the Commercial Court Rules.

[37] The structure of the affidavit need not be altered materially or even at all. But the question of prospects did not quite hinge on these factors alone. The applicant would have to traverse the same course to seek the court`s discretionary favour and no guarantee of such existed.

iii. *Points (iv) to (viii) in Read v Gardiner*

[38] Having regard to the matters dwelt on at commencement, I am not convinced that the applicant is deserving of the relief sought. Particularly the fact that granting this application will not necessarily result in disposal of HCHC 347/25. Mr *Mpofu* has all but confirmed that yet another layer of proceedings to cure the founding affidavit will need to be launched.

[39] The matters have aged. They remain outstanding. It would not be in the interests of justice to continue piling interlocutories over the primary disputes. If anything, applicant may well be playing into the respondents` hands if indeed they are, as applicant alleges, deviously seeking a delay in finalisation of this matter.

[40] There must be finality to litigation. The primary dispute in HCHC 84/24 concerns the rescue or winding up of applicant. That matter should be concluded with expediency. The papers in the application for corporate rescue as I stated, regale the challenges which continue to mount with the current state of affairs. Mr Mpofu articulated these quite well. There should be finality to litigation.

DISPOSITION

[41] The application cannot prevail. And costs must follow the event but not at the punitive rate prayed for by the respondents. The respondents fervent admonitions of the applicant`s conduct (in a bid to justify higher costs) are not supported by the matters before the court.

[42] As I stated earlier, the application was correctly filed. The technical mis-citations of the rules represented a fatal blemish on an otherwise competently crafted set of papers. And in

any event, the accusing finger in the application credibly pointed at the respondents. There is cause to suggests that they were not entirely blameless.

It will therefore be ordered that; -

1. The application for condonation be and is hereby dismissed with costs.

Scanlen and Holderness-applicant`s legal practitioners
Gumbo and Associates-first, second and third respondents` legal practitioners.

[CHILIMBE J__28/7/26]